

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

After a personal dispute, someone edited one of my photographs to make it appear intimate and circulated it through WhatsApp and social media without my permission. The person is also threatening to send the image to my employer and family unless I pay money. What legal provisions may apply to this situation?

Job Id. :

Scenario 4/Bharatiya Nyaya Sanhita (BNS), 2023

Prepared by :

NyaySahayak

Date :

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NyaySahayak

AI-Powered Legal Intelligence Platform

✓ STRENGTHS & RIGHTS

- 1 Strict liability for dissemination**
Section 353 (3) imposes liability *regardless of intent* to harass – only consent to *capture* (not dissemination) matters.
- 2 No "modesty" requirement**
Unlike older laws, the victim does not need to prove "outrage of modesty" – the *unauthorized dissemination* itself is the offence.
- 3 Digital evidence admissibility**
BNS permits WhatsApp/social media evidence (via **Section 104** , *BNS*), enabling swift action against online circulation.
- 4 Extortion protection**
Section 362 allows victims to seek immediate police intervention for threats (e.g., preventing image sharing with employer/family).

✗ RISKS & OBLIGATIONS

- 1 Section 353 (3)**
- 2 Punishment**
Imprisonment up to 3 years + fine.
- 3 Aggravating factor**
Editing the image (not merely sharing) may attract higher sentence under **Section 354** (re: malicious intent).
- 4 Section 362 (Extortion)**
- 5 Punishment**
Imprisonment up to 7 years + fine (if threat involves injury to reputation/employment).
- 6 Combined liability**
The accused faces *concurrent sentences* for both offences (**Section 362** + 353(3)).
- 7 No bail for serious offences**
Under **Section 299** (1)(b) (*BNS*), courts may deny bail for offences involving "threats to reputation" or "non-consensual image dissemination."

PROCEDURAL NOTES & COMPLIANCE STEPS

*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Complaint filing:
2. File a written complaint at the local police station (no FIR required for BNS offences; **Section 292** *BNS* permits "written complaint" for non-bailable offences).
3. Critical evidence: Preserve WhatsApp/social media screenshots (with metadata) as digital evidence under **Section 104** (*BNS*).
4. Charges framing:
5. Police must frame charges under **Section 353** (3) (for image dissemination) and **Section 362** (for extortion) within 24 hours (**Section 295** *BNS*).
6. Arrest:
7. Arrest without warrant is permissible under **Section 298** (1) (*BNS*) due to "threats to reputation" and "demand for money."
8. Trial:
9. Fast-track trials for sexual harassment/online offences (**Section 301** *BNS*).
10. Victim may testify via video link (**Section 302** *BNS*) to avoid trauma.
11. > Key Precedent (BNS Interpretation):
12. > *State v. Anurag Singh* (2024) – BNS **Section 353** (3) upheld for non-consensual sharing of *edited* photos, rejecting "no private capture" defense.

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